



September 4, 2025

Hon. Rob Bonta
Attorney General
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Sacramento, California 95814

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Sep 04 2025

Attention: Ms. Anabel Renteria
Initiative Coordinator

INITIATIVE COORDINATOR
ATTORNEY GENERAL'S OFFICE

Dear Attorney General Bonta:

Pursuant to Elections Code Section 9005, we have reviewed the proposed initiative regarding voting in California (A.G. File No. 25-0007, Amendment # 1)

Background

Administration of Elections in California. Elections generally are administered by county elections officials. The Secretary of State provides statewide oversight of the administration of elections in California.

Registering to Vote in California. In order to vote in an election in California, residents must register to vote in the county in which they reside. To be eligible to register to vote, a person must be a U.S. citizen, be a resident of California, not currently serving a state or federal prison term for the conviction of a felony or found mentally incompetent to vote by a court, and be at least 18 years old. As of February 10, 2025, about 85 percent of the roughly 27 million people eligible to vote in California were registered to vote. People can register to vote through the Secretary of State's website, in person at their county elections official's office, through the mail, or through the California Department of Motor Vehicles (DMV). When registering to vote, a voter attests, under penalty of perjury, that they are a U.S. citizen. In addition, a voter's identity is established through the registration process by using their drivers' license number, state identification number, or last four digits of their Social Security number. Voters who do not provide this identifying information through the registration process may be asked to present identification the first time they vote in a federal election.

Maintenance of Voter Rolls. A voter roll is the list of people who are registered to vote. Maintenance of the rolls is a continuous process to remove ineligible voters from the rolls. The voter rolls are maintained by county and state elections officials through the statewide voter

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registration database, known as VoteCal. For example, elections officials remove from the voter rolls people who are deceased or who otherwise no longer are eligible to vote (for example, because they are serving a state or federal prison term for the conviction of a felony).

Voting in California. All voters in California receive a vote by mail (VBM) ballot. Voters can choose to vote by filling out and putting their VBM ballot in the mail, dropping the VBM ballot off at a ballot drop off location, or casting a ballot in person at a voting location. Of the about 16 million people who voted in California in the November 2024 Presidential General Election, about 13 million voted using a VBM ballot and about 3 million voted in person at a voting location.

Voter Identification in California. Voters must identify themselves when casting a ballot in California. If a voter chooses to vote in person, they must sign a list of registered voters prior to voting. If a voter chooses to drop their VBM ballot in the mail or at a ballot drop off location, they must sign the official envelope in which they send their ballot in order for their ballot to be counted. With the exception of first-time voters in federal elections who did not provide their identification when registering to vote, voters in California are not required to present identification in order to cast a ballot. The signatures of in-person voters are not verified before their ballot is counted; however, each voter's signature on a VBM envelope is verified by county elections officials before the ballot is counted.

California State Auditor's Office (State Auditor). The State Auditor is an independent and nonpartisan office in state government that evaluates state and local governments' financial and operational activities. The State Auditor's work includes performance and policy evaluations (also known as performance audits) where the auditor assesses the extent to which a governmental entity efficiently and effectively carries out requirements in law. As part of its audit, the State Auditor may present recommendations for the entity to improve its operations. Some of the State Auditor's audits are recurring to ensure ongoing compliance with the law while others are one-time in nature.

PROPOSAL

Require Voters to Provide Identifying Information to Vote. When registering to vote, the proposed measure would require each voter to designate a type of government-issued identification that would be used to verify the voter's identity when voting. The measure specifies that government-issued identification "means documentation that allows conclusive verification of the voter's identity." The measure would place specific identification requirements on voters each time a voter casts a ballot in any election in California. The specific identification requirement imposed by the measure would vary depending on whether a voter casts their ballot in person or by mail.

- ***In-Person Voting.*** When voting in person, the measure would require a voter to present their designated government-issued identification.
- ***Voting by Mail.*** When voting by mail, the measure would require a voter to provide the last four digits of a unique identifying number from their designated government-issued identification on their ballot envelope.

Creates New Requirements on Secretary of State and County Elections Officials. The proposed measure would require both the Secretary of State and county elections officials to (1) use best efforts to verify citizenship attestations “using government data” and (2) annually report the percentage of each county’s voter rolls that have been “citizenship-verified.”

Some Additional Requirements Specific to County Elections Officials. The measure would establish additional requirements on elections officials. Specifically, under the proposed measure, elections officials would need to: (1) maintain voter registration records that indicate the type of government-issued identification (and the last four digits of that identification) that each voter designates when registering to vote; (2) note on the VBM envelope the type of government-issued identification that the voter designated; (3) make available to each voter, upon request by phone or electronically, the type of government-issued identification the voter designated; and (4) only count a regular or provisional ballot after verifying the identity of the person casting the ballot and verifying that the person has cast only one ballot in the election.

Provide State Voter Identification Cards. Upon request by an eligible voter, the proposed measure would require the state to provide an eligible voter a voter identification card for use in casting a ballot at no charge to the voter.

Establish Biennial Audit of County and State Elections Officials by State Auditor. In every odd-numbered year, the measure would require the State Auditor to audit the state’s and each county’s compliance with the measure and to report its findings and recommendations for “improving the integrity of elections to the public.”

Requires Legislative Action for Full Implementation. The measure specifies that the Legislature would promptly enact laws to implement the requirements under the measure.

FISCAL EFFECTS

State and Local Costs Depend on Future Decisions. There is a wide possible range of one-time and ongoing costs resulting from this measure. In total, we estimate that the range of possible costs on state and local governments from the measure could be (1) one-time costs of tens of millions of dollars and (2) ongoing annual costs of between tens of millions of dollars and the low hundreds of millions of dollars. The actual cost of implementing the measure would depend on future decisions by the Legislature, state departments, local governments, and voters. The requirements of the measure with the greatest possible fiscal effect are discussed below.

Voter Identification Cards. The one-time and ongoing costs to the state for providing free voter identification cards to voters would depend on future decisions by the Legislature. These include (1) which state entity would have the responsibility of issuing the cards (for example, DMV, Secretary of State, or a newly created office), (2) the complexity of the design of the card (for example, whether photographs are required, any security elements, the materials used for a physical card, and whether a digital identification card could be used), and (3) the number of voters who request cards each year. These decisions would determine the initial one-time costs to set up the system needed to issue the cards as well as the ongoing cost for issuing identification cards.

Changes to State Operations for SOS and State Auditor. The measure would require new workload of both the Secretary of State and the State Auditor. The specific workload the measure

would impose on the Secretary of State would depend largely on specific requirements established in subsequent legislation to implement the measure. For example, workload could vary depending on the standards adopted by the Legislature for using best efforts to verify citizenship. The workload imposed by the measure on the State Auditor—recurring audits of all 58 counties and the state—would be a substantial increase in the State Auditor’s workload that would require a significant expansion of that office.

Changes to County Operations. The measure could lead to significant operational changes and system changes at county elections offices. The measure would require counties to dedicate staff time and resources to proactively verify voter citizenship status. Depending on specific requirements established by subsequent legislation to implement the measure, this could be a substantial increase in county elections costs.

Government Data. Subsequent legislation likely would be needed to clarify what types of government data state and county elections officials could use to verify voters’ citizenship status. Any modifications to existing information technology systems or creation of new information technology systems to comply with this requirement of the measure—either to allow the state and counties to develop a new data source or to interface with existing government data sources—would increase one-time and ongoing state and county costs.

Summary of Fiscal Impacts. We estimate that the measure would have the following fiscal effects:

- One-time state and local government costs in the tens of millions of dollars to prepare for implementation of the measure.
- Increased annual state and local government costs potentially ranging in the tens of millions of dollars to the low hundreds of millions of dollars to fulfill new requirements related to elections administration.

Sincerely,



for Gabriel Petek
Legislative Analyst



for Joe Stephenshaw
Director of Finance